BY ORDER OF THE
SECRETARY OF THE AIR FORCE

AIR FORCE INSTRUCTION 34-219

17 OCTOBER 2007
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JOINT BASE CHARLESTON
Supplement

17 OCTOBER 2013

Services

ALCOHOLIC BEVERAGE PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction outlines Air Force policy for procuring, controlling, selling , and using alcoholic beverages. It implements Air Force Policy Directive (AFPD) 34-2, Managing Nonappropriated Funds. It applies to all personnel who sell, serve, purchase, or consume alcohol on Air Force installations or aircraft. It also applies to Air National Guard (ANG) units and members when on Air Force bases. This publication does not apply to the ANG bases. Failure to observe prohibitions and mandatory provisions of this Instruction in paragraphs 1.3.1., 1.3.2., and 1.3.3. by military personnel is a violation of Article 92, Uniform Code of Military Justice (UCMJ). Violations may result in administrative disciplinary action without regard to otherwise applicable criminal or civil sanctions for violations of related laws. Major Commands (MAJCOM) may supplement this instruction. Send drafts of command supplements to Headquarters Air Force

Services Agency (HQ AFSVA/SVPB), 10100 Reunion Place, Suite 501, San Antonio TX, 78216-4138 for approval before publishing. Send copies of the final publication to HQ AFSVA/SVPBC and HQ United States Air Force (HQ USAF/A1S), 201 12th Street, Suite 403, Arlington VA 22202-4306. This instruction directs collecting and maintaining information subject to the Privacy Act of 1974 authorized by 10 U. S. C. 8013, Secretary of the Air Force. System of Records F065 AF SVA A, applies. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFMAN 37-123, (will become AFMAN 33-363) Management of Records, and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located at https://afrims.amc.af.mil.

(JBCHARLESTON) AFI 34-219, 17 October 2007, is supplemented as follows. The purpose of this supplement is to provide guidance for local conditions with regard to the sale and service of alcoholic beverages on Joint Base Charleston. This supplement applies to all Joint Base Charleston personnel. This publication requires collecting and maintaining information protected by the Privacy Act of 1974 as authorized by 10 USC 8013. Ensure all records created by this supplement containing FOUO information are marked "FOR OFFICIAL USE ONLY" at the bottom of each page IAW DOD 5400.7, *DOD Freedom of Information Act Program*. Ensure each paragraph containing FOUO information marked as such. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual 33-363, *Management of Records*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm**. Contact supporting record managers as required. Send comments and suggested improvements to this supplement on AF Form 847, *Recommendation for Change of Publication*, through channels, to 628 CS/SCO, 103 E Simpson Street, Joint Base Charleston, SC 29404.

SUMMARY OF CHANGES

The interim change implements new guidance that clarifies requirements for the offering of alcoholic beverages, by the drink, at reduced prices. A margin bar (|) indicates newly revised material.

(JBCHARLESTON) This document has been substantially revised and must be completely reviewed. Major changes include: Document is based on contents of current AFI 34-219, *Alcoholic Beverage Program*, dated 17 October 2007 which supersedes the previous version of AFI 34-219, *The Control, Procurement, Sale and Use of Alcoholic Beverages*, dated 9 September 1998. Therefore, AFI 34-219_CAFB Supplement 1 needs to be revised to coincide with the current AFI and to address unique situations at Joint Base Charleston such as: Installation is no longer Charleston Air Force Base but is called Joint Base Charleston; Various OPRs have changed from 437 AW / SPTG / SVS to 628 ABW / MSG / FSS, etc. Terminology and addition of Naval Weapon Station activities associated with Figure 1.1 have been updated.

Chapter 1

PROGRAM ELEMENTS

1.1. Scope. This instruction provides guidance for all personnel that procure, sell, serve, or consume alcoholic beverages on Air Force installations or aircraft.

1.2. Roles and Responsibilities.

1.2.1. HQ USAF/A1S issues guidance and instructions on controlling, selling, procuring, and using alcoholic beverages.

1.2.2. The AFSVA Commander provides procedural guidance for controlling, selling, procuring, and using alcoholic beverages.

1.2.3. MAJCOM commanders, through their Services staffs, enforce this AFI.

1.2.4. The Army and Air Force Exchange Services (AAFES) commander oversees all Class Six packaged beverage operations on Air Force bases in accordance with AFJI 34-210.

1.2.5. Installation commanders oversee installation alcoholic beverage programs and enforce this AFI. For Class VI outlets, the installation commander does this in coordination with the AAFES general manager to ensure the use is consistent with AFJI 34-210, paragraph 4.9.

1.2.5. **(JBCHARLESTON)** All requests for exceptions outlined in **Figure 1.1** will be submitted to the 628th Air Base Wing Commander (628 ABW/CC) through 628 FSS/CC, 628 MSG/CC and 628 AW/JA. Each request must have an AF Form 1768, *Staff Summary Sheet*, attached with full explanation/documentation provided

Figure 1.1. (JBCHARLESTON) Authorized facilities to sell/consume alcoholic beverages.

	ALCOHOLIC BEVERAGE AUTHORIZED		BEER/WINE AUTHORIZED	
LOCATION	**SALE**	**CONSUMPTION**	**SALE**	**CONSUMPTION**
Military Clubs; Charleston Club, The Dive, Redbank Club	YES	YES	YES	YES
Golf Course Snack Bars	YES	YES	YES	YES
Bowling Centers	YES	YES	YES	YES
Lodging	YES	YES	YES	YES
Outdoor Athletic Events	NO	NO	YES	YES
Outdoor Recreation Areas; Picnic Grounds, Multi-Purpose Fields, etc., must be	YES	YES	YES	YES

sold by an FSS activity authorized to do so				
AAFES/NEX Class Six/Shoppette	YES	NO	YES	NO
AAFES/NEX Mall Snack Bar	NO	NO	YES	YES
AAFES/NEX Main Store (Bulk Sales)	YES	NO	YES	NO
Dormitories	NO	YES	NO	YES
Squadron “Heritage Rooms” as approved by the Installation Commander	NO	YES	NO	YES

1.2.6. The Vice President of the AAFES region and the appropriate MAJCOM Director of Services settle any disputes that the installation commander and local responsible AAFES official can't resolve. Send information copies of the dispute to Headquarters AAFES, Strategic Planning and Communications Directorate (HQ AAFES/PL), and HQ AFSVA/SVP.

1.3. General Requirements of the Alcohol Beverage Program.

1.3.1. The minimum age for purchasing, serving, selling, possessing, or drinking alcoholic beverages on Air Force bases must be consistent with the law of the state, territory, possession, or foreign country in which the installation is located.

1.3.2. Servers and sellers of alcoholic beverages must verify the purchaser's age with a photo identification card (e.g. active duty identification card, driver's license, passport, reserve identification card, or family identification and privilege card).

1.3.3. Adults may not provide alcoholic beverages to minors except in accordance with applicable state laws.

1.3.4. The Air Force may punish a military member who violates these restrictions under Article 92, Uniform Code of Military Justice.

1.3.5. Military personnel 18 years old or older may purchase, serve, sell, possess, and consume alcoholic beverages outside the United States, its territories, and possessions unless a higher drinking-age requirement exists in accordance with applicable status of forces or country-to-country agreements. A higher drinking age requirement may also be imposed

based on the local situation as determined by the installation commander or the senior on-site unit commander when there is no installation commander. Coordination with any host nation commander is required.

1.3.6. As states enact new drinking-age laws, installation commanders must make corresponding changes in base drinking-age guidance.

1.3.7. The Air Force, consistent with mission needs, will cooperate with federal, state, and local officials; however, there is no legal obligation to submit to state or local control or regulation.

1.4. Program Exceptions.

1.4.1. MAJCOM Directors of Services may approve the following exceptions to standard guidance:

1.4.1.1. At Air Force installations located within approximately 50 miles from a neighboring state that has a lower drinking age, the minimum base drinking age may be lowered to match that of the neighboring state to reduce the likelihood that members will drive while intoxicated.

1.4.1.2. When an entire unit marks a unique or non-routine military occasion on a military installation, the minimum drinking age for attendees at a particular unit gathering may be lowered.

1.4.1.3. MAJCOM Directors of Services may not delegate the approval authority for exceptions to the minimum drinking age.

1.4.2. MAJCOM Directors of Services may approve exceptions for any combination of beverages, including the following common groupings (each approval document must specifically state the alcoholic beverages that the exception covers):

1.4.2.1. Beer only.

1.4.2.2. .Wine coolers and other low-alcoholic beverages with less than seven percent alcoholic content by volume.

1.4.2.3. Beer and wine only.

1.4.2.4. Beer, wine, and spirits.

1.4.3. MAJCOM Directors of Services reevaluate the exceptions annually and send an information copy of the continued exceptions to HQ AFSVA/SVPB.

1.4.4. MAJCOM Directors of Services must cancel all exceptions that no longer meet the above criteria.

1.5. Dram Shop Liability. The "Dram Shop" theory is a legal theory of liability, created either by statute or court decision, which imposes upon the owner, operator, and (or) employees of any establishment serving alcoholic beverages the duty to refuse to serve additional alcoholic beverages to a customer who reaches or appears to be reaching the point of intoxication. When an establishment continues to sell alcoholic beverages to such a customer and the customer subsequently departs and causes harm to himself or herself , or to others, the owner, operator, and (or) employees of the establishment can be held liable for damages. To protect the assets and

interests of Nonappropriated Fund Instrumentalities (NAFIs) and the Air Force, personnel must adhere to the following procedures:

1.5.1. Flight chiefs write and publish operating instructions (OIs) that prohibit personnel from serving alcoholic beverages to individuals who appear intoxicated or close to being intoxicated.

1.5.1.1. Servers record their understanding of this policy in the employee's work folder, Supervisor's Employee Brief, by signing underneath this statement: "I understand my responsibility under the dram shop theory of liability not to sell or serve alcoholic beverages to persons who appear to be nearing intoxication and not in complete control of their faculties." The statement is placed in the comments section of the employee's work folder by the server's supervisor.

1.5.1.2. The AAFES Commander prescribes the statement to be signed by all AAFES employees.

1.5.2. Activity managers ensure proper safeguards or controls to protect the welfare of an intoxicated patron.

1.5.2. **(JBCHARLESTON)** Activities serving or selling alcoholic beverages shall display the AF Culture of Responsible Choices (CoRC) program affiliated JB CHS initiated "0-0-1-3" poster; "Zero drinks if you are under 21 - Zero DUIs - 1 drink per hour max - 3 drinks per night max."

1.5.3. Activity managers promptly report any incident that may result in a potential claim to the Services commander or division chief (refer to AFI 34-208, *Property and Casualty Program*). AAFES activity managers will report to the AAFES general manager for the base.

1.6. Drunk and Drugged Driving Program. Under the direct guidance of the installation commander, the Services commander or division chief and AAFES manager, must be familiar with the spirit and intent of all Air Force initiatives to eliminate drunk or drugged driving incidents involving patrons of base Services and AAFES facilities.

1.6.1. The installation commander ensures the base holds annual training programs to familiarize beverage supervisors and servers with Air Force drinking policies.

1.6.2. The training must cover:

1.6.2.1. Principles of dram shop liability.

1.6.2.2. Methods for identifying intoxicated patrons.

1.6.2.3. Recommended procedures to prevent individuals from driving under the influence of alcohol.

1.6.3. Supervisors document this training in each employee's work folder.

1.6.4. AAFES conducts the training for its employees.

1.6.5. Flight chiefs must develop OIs for activities serving alcoholic beverages. The OIs must emphasize:

1.6.5.1. The importance of curtailing alcohol or drug influenced incidents.

1.6.5.2. The principles of dram shop liability.

1.6.5.3. The responsibilities of employees in carrying out the drunk and drugged driving program.

1.6.5.4. The importance of encouraging patrons to use a "designated driver" or "buddy" system.

1.6.5.5. The provisions of the alcohol deglamorization program.

1.7. Alcohol Deglamorization Program. Installation commanders, AAFES managers, and Services activity managers implement the Air Force's Alcohol Deglamorization Program at the base level.

1.7.1. To oversee the base program, installation commanders follow these procedures:

1.7.1.1. Use base media (newspapers, bulletins, etc.) to deglamorize alcohol, call for responsible drinking, and show that alcoholism is a treatable condition.

1.7.1.2. Ensure activities serving alcoholic beverages don't promote excessive drinking.

1.7.1.3. Ensure activities serving alcoholic beverages also offer nonalcoholic beverages.

1.7.1.4. Approve the hours during which alcoholic beverages by the drink are sold on the installation.

1.7.1.4. **(JBCHARLESTON)** Hours of operation for sale, dispensing, and consumption of alcoholic and malt beverages are set so as to provide reasonable service and access to facilities while meeting the needs of the majority of military personnel on JB CHS. To ensure this is being done, all hours of operation or changes in the hours of operation will be submitted to the installation commander, in writing, who will then approve/disapprove them. Hours of operation will be posted at the individual facilities.

1.7.1.5. Coordinate the hours of operation for package beverage sales with AAFES to provide reasonable service, meet local conditions, and recognize the unique needs of military personnel.

1.7.1.6. Ensure there is no award of coupons for reduced prices on alcoholic beverages.

1.7.1.7. Ensure alcoholic beverages are not provided free of charge except for promotional tastings as approved by the installation commander.

1.7.2. The following guidance applies at all Air Force installations, but the installation commander can provide waivers on a case-by-case basis. The installation commander cannot delegate the waiver authority.

1.7.2.1. The MAJCOM Director of Services secures the approval of the MAJCOM/CC for any command-wide exceptions.

1.7.2.2. AAFES managers and Services activity managers observe the following procedures when offering alcoholic beverages, by the drink, at reduced prices:

1.7.2.2.1. Keep designated social hour periods to 10 hours or fewer per week and no more than 2 hours per day.

1.7.2.2.2. Make snacks or food available.

1.7.2.2.3. Reduce prices no more than 50 percent except for beverages offered as complimentary with a meal.

1.7.2.2.4. Don't serve two-for-one drinks.

1.7.2.3. Services activity managers observe these procedures when operating bars:

1.7.2.3.1. Don't operate pro rata bars that require nondrinkers to share the cost of alcoholic beverages unless a pay-as-you-go bar isn't practical or all the members of a group volunteer to share the cost.

1.7.2.3.2. Don't include the cost of alcoholic beverages in a package price for a meal, party, or other function (includes dining-in or -out) without offering a comparable nonalcoholic option.

1.7.2.3.3. Don't use terms that glamorize alcoholic beverages or their consumption ("sick calls," "attitude adjustment hours," and so on).

1.7.2.3.4. Use the term "social hour" in all written advertisements and provide a range of programs that include more than just reduced prices on alcoholic beverages.

1.7.2.3.5. Reduce prices for nonalcoholic beverages when reducing prices for alcoholic beverages.

1.7.2.3.6. Make a complimentary alcoholic beverage part of a meal only in appropriate cases (for example, with birthday or anniversary meal programs). In all cases, make nonalcoholic beverages available as an optional complimentary drink.

1.7.2.3.7. Prohibit drinking contests.

1.7.2.3.8. Don't use "last call" or other countdown events designed to promote last-minute sales.

1.7.2.3.9. Don't increase the alcoholic content of a drink beyond the standard bar recipe without increasing the price.

1.7.2.3.10. Complimentary nonalcoholic beverages will be to group selected designated drivers.

1.7.2.3.11. Establish a standard shot size not to exceed 1.5 ounces.

1.8. Purchasing Alcoholic Beverages for Resale. Air Force NAFIs must purchase alcoholic beverages from the most competitive source possible, with the following restrictions:

1.8.1. Installations in the CONUS, Alaska, and Hawaii must purchase wine and malt beverages for resale from the most competitive in-state source. An in-state source must deliver the order.

1.8.2. Installations in Alaska and Hawaii must purchase distilled spirits for resale from the most competitive in-state source. An in-state source must deliver the order.

1.8.3. Installations in the CONUS must purchase distilled spirits from the most competitive source. There is no in-state purchasing or delivery requirement.

1.9. Taxation. NAFIs that buy and sell alcoholic beverages must observe the following Federal tax stamp regulations:

1.9.1. In the United States, a NAFI (Morale, Welfare, and Recreation Fund (MWRF); Lodging Fund; AAFES; and so on) can't transfer alcoholic beverages to another NAFI for

reimbursement unless the transferring NAFI has a Federal Liquor Wholesaler's Occupation Tax Stamp issued by the Bureau of Alcohol, Tobacco, and Firearms (BATF).

1.9.2. In the United States, each NAFI that sells retail alcoholic beverages must have the proper Federal retail occupation tax stamp (either a liquor or a beer stamp).

1.9.3. Each NAFI that sells alcoholic beverages needs only one stamp, regardless of how many annexes or retail outlets that NAFI operates on the installation.

1.9.4. A NAFI operating retail outlets off-base (for instance, at an off-base recreation area) must have a separate stamp for each off-base outlet.

1.9.5. A NAFI that holds a valid Federal wholesaler's occupation tax stamp doesn't need a Federal retail occupation tax stamp.

1.9.6. A NAFI that transfers alcoholic beverages to other NAFIs on a reimbursable basis must post a sign that can be seen from outside the building that reads "Wholesale Liquor Dealer."

1.9.7. A NAFI must provide BATF officers with purchase orders, invoices, stock record cards, inventories, and other related documents on request.

1.9.8. Obtain information and forms to apply for wholesale or retail alcoholic beverage permits and tax stamps from the Department of the Treasury, Internal Revenue Service, Bureau of Alcohol, Tobacco, and Firearms, 650 Massachusetts Ave Room 4100, Washington DC 20226-5000.

1.9.9. NAFIs are exempt from all non-federal regulations and direct state and local taxes.

1.9.9.1. Immediately request assistance from the HQ AFSVA Office of Legal Counsel (HQ AFSVA/SVL), 10100 Reunion Place, Suite 503, San Antonio TX 78216-4138 to resolve any attempt by a state or local government to tax or regulate a non AAFES NAFI's alcohol purchases or sales.

1.9.9.2. Request the assistance of the Commander, AAFES, Attn: General Counsel, P.O. Box 660202, Dallas Texas 75266-0202 to resolve any attempt to tax or regulate an AAFES activity.

1.10. Breath Analyzers. The use or sale of coin-operated or any other type of breath analyzers in Services activities is prohibited.

Chapter 2

SERVING OR SELLING ALCOHOLIC BEVERAGES FOR ON-PREMISES CONSUMPTION

2.1. Governing Criteria. Clubs, golf, and bowling are the primary providers of alcoholic beverages for on-premises consumption. The installation commander will determine which other MWRF-supported activities and AAFES facilities may sell alcoholic beverages to authorized adults by the drink or in single-serving containers.

2.1.1. The Air Force prohibits alcoholic beverages in any youth program building and outdoor area or at any function sponsored by or for the youth program (Refer to AFI 34-249, *Youth Programs*).

2.1.2. Managers may sell alcoholic beverages for on-premises consumption in all lodging facilities. If the lodging manager doesn't provide this service, an MWRF-supported activity may do so.

2.1.2.1. Lodging managers may not operate bars, but may sell the following kinds of packaged alcohol:

2.1.2.1.1. Distilled spirit miniatures (or, if not available, 200 milliliter sizes).

2.1.2.1.2. Wine coolers and other premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume (not to exceed 375 milliliters).

2.1.2.1.3. Wine (no larger than 1 liter containers).

2.1.2.1.4. Beer (by the bottle or can).

2.1.2.2. AAFES food facilities may sell beer, wine, and premixed commercial drinks (if less than seven percent alcoholic content by volume) for on-premise consumption. ***EXCEPTION***: AAFES-operated name brand fast food outlets normally may not sell alcoholic beverages (see paragraph **2.1.3.1**).

2.1.3. The installation commander may allow:

2.1.3.1. AAFES-operated name brand fast food outlets to sell beer, wine coolers, and premixed commercially packaged alcoholic beverages with less than seven percent alcohol content by volume if the chain offers the same products in the local community.

2.1.3.2. AAFES-operated full-service restaurants to sell wine by the glass with meals.

2.1.4. An AAFES facility that isn't authorized to sell alcoholic beverages may request a waiver from HQ USAF/A1S. Any such request should be routed through HQ AFSVA/SVPB, 10100 Reunion Place, Suite 500, San Antonio, TX 78216-4138. The request must explain how permitting the facility to sell drinks would be beneficial to both consumers and the Air Force.

2.1.5. Base restaurants and other facilities supported by a civilian welfare NAFI may sell these kinds of drinks for on-premises consumption when approved by the installation commander:

2.1.5.1. Beer (by single serving size).

2.1.5.2. Wine coolers (by single serving size).

2.1.5.3. Premixed, commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume.

2.1.5.4. Wine by the glass with meals, when approved by the installation commander.

2.1.6. Alcoholic beverages may be consumed in other base and base-related facilities or areas as approved by the installation commander. The base supplement to this instruction must specify these authorized areas (for example, at government quarters or other base or off-base areas where personnel usually bring their own refreshments).

2.1.6. **(JBCHARLESTON)** Alcoholic beverages, to include beer and wine, will not be sold, possessed, dispensed, or consumed on Joint Base Charleston except as indicated in Figure 1.1, unless authorized by the installation commander. In accordance with South Carolina State Law on drinking, an adult on Joint Base Charleston is a person 21 years of age or older. Liquor, beer, and wine may be sold to and consumed by adults. In addition, beer and other alcohol may be stored and consumed by adults and military personnel 21 years of age or older in government quarters. Individuals may not bring their own personal alcoholic beverages into Force Support Squadron activities which sell alcoholic beverages.

2.1.7. Air Force medical and religious facilities may dispense alcoholic beverages in accomplishing their mission.

2.1.8. When approved by the installation commander, alcoholic beverages may be served and consumed in on-base areas not designated for this purpose only if they are sold and dispensed by an authorized Services or AAFES activity.

2.2. Vending Machines. Don't use vending machines to sell alcoholic beverages in the United States, its territories, or possessions.

2.2.1. Outside the United States, its territories and possessions, installation commanders may approve vending machine sales of beer in transient quarters, dormitories, and dining halls for on-premise consumption.

2.2.2. AAFES operates their own overseas vending machine program. A base supplement must set up the following minimum controls for facilities with vending machines:

2.2.2.1. Hours of operation that comply with mission requirements.

2.2.2.2. Supervision of machines during operating hours.

2.2.2.3. Authorized use of the machines.

2.2.2.4. Safeguarding of machines and contents during non-operating hours.

2.3. Private Organizations. Private organizations cannot sell or serve alcoholic beverages on Air Force bases.

2.4. Air Force Sponsored Aircraft. With MAJCOM Director of Services approval, individuals may consume alcoholic beverages on Air Force-sponsored aircraft. Create a special NAFI to manage the funds in accordance with AFI 34-201, *Use of Nonappropriated Funds (NAFs)*.

2.5. Unauthorized Beverages. Activity managers must not allow individuals to bring personal supplies of alcoholic beverages into buildings or on the grounds where activities sell or serve alcohol.

Chapter 3

SELLING ALCOHOLIC BEVERAGES FOR OFF-PREMISE CONSUMPTION

3.1. AAFES. AAFES is designated as the single manager of packaged alcoholic beverage (Class Six) stores and the prime wholesaler of alcoholic beverages. The Air Force packaged beverage policy appears in AFJI 34-210, *Army and Air Force Exchange Service (AAFES) Operating Policies.*

3.2. Base Services Activities. Services and other Air Force activities may not compete with AAFES to sell packaged alcoholic beverages. When approved by the installation commander, Services activities may sell beer, wine coolers, and other commercially packaged alcoholic beverages with less than seven percent alcoholic content by volume for off-premises consumption, but must restrict these sales to time periods when AAFES-operated retail outlets on the installation are closed. Services may not offer package alcohol for a lower price than AAFES charges for the same item.

3.2.1. Packaged beer or wine sales that Services offers as part of a party contract or takeout food and beverage operation are exempt from this restriction. Takeout operations normally may only sell 6-pack containers and similarly packaged products to include keg beer.

3.2.2. Clubs may sell bottled wines and champagnes listed on the dining room wine list for off-premise consumption under these conditions:

3.2.2.1. Clubs may not set up rooms separate from the dining room to display or sell for off-premise consumption.

3.2.2.2. Clubs ensure that dining room list prices comply with the pricing policy specified in paragraph **3.6**

3.2.3. Club and Class Six outlet managers must ensure that package alcohol sales are made only to patrons authorized to use the Class Six store. (Refer to paragraph **3.4** for specific instructions on authorized patronage and the attachment for the definition of Class Six.) Managers must inform patrons of the maximum quantities that an individual may legally transport into or through the state, district, territory, or country where the installation-of-purchase is located.

3.3. Establishing Class Six Outlets.

3.3.1. In the United States, installations may operate Class Six outlets when approved by the Secretary of the Air Force. AFJI 34-210 contains procedures for establishing a Class Six store.

3.3.2. In foreign areas overseas, installations may operate Class Six outlets where there is no contradictory status-of-forces or other country-to-country or local governmental agreement.

3.3.2.1. MAJCOMs or Field Operating Agencies (FOA) may approve such operations if requested by AAFES. MAJCOMs and FOAs must send an information copy of each approval to HQ AFSVA/SVPB at least 30 days prior to approving a new Class Six store.

3.4. Authorized Patronage.

3.4.1. Interservice publication AFJI 34-210 contains AAFES Class Six patronage restrictions and identification procedures.

3.4.2. Authorized patronage in foreign overseas areas must comply with the provisions of the statusofforces or other country-to-country agreements in each country.

3.5. Controlling Sales. Authorized patrons may not sell, exchange, or otherwise divert packaged alcoholic beverages to unauthorized personnel or for purposes that violate Federal, state, or local laws, or status-of-forces or other country-to-country agreements.

3.6. Pricing. Services activity managers must ensure their prices for packaged alcoholic beverages containing less than seven percent alcohol by volume are no lower than those charged by AAFES and substantially uniform with other military service outlets in the same geographic area.

3.7. Wholesale Sales. AAFES is the prime wholesaler of alcoholic beverages on Air Force installations.

3.7.1. AAFES provides all requested alcoholic beverage products to authorized Services and NAF-supported base activities.

3.7.2. If AAFES has stock shortages, activities selling alcoholic beverages by the drink have first priority.

3.7.3. AAFES sets wholesale prices based on the "landed cost". A Class Six store pays for alcohol purchases (the purchase order price that the store pays, adjusted for vendor and invoice discounts, plus costs incurred to bring goods to the point of sale). AAFES assesses no additional transportation, warehousing distribution, or handling charges.

3.7.3.1. AAFES notifies HQ AFSVA/SVP if exceptional conditions (national disasters, transportation strikes, etc.) arise that affect wholesale prices.

3.7.4. Sale of Class Six merchandise to any non-MWR/NAF organizations or activities will be authorized IAW Army Regulation (AR) 215-1/AFR 215-7. Sale price will be at no less than full retail price or as determined by Commander, AAFES.

3.7.5. Services and other NAF-supported activities may purchase alcoholic beverages from sources other than AAFES. Compliance with paragraph **1.6** is mandatory.

3.8. Labeling Packaged Alcoholic Beverages.

3.8.1. Public Law 100-690, Title VIII, *Alcoholic Beverages Labeling Act of 1988*, 18 November 1988, requires that all packaged containers of alcoholic beverages for resale on military installations bear this statement: "**GOVERNMENT WARNING:** (1) According to the Surgeon General, women should not drink alcoholic beverages during pregnancy because of the risk of birth defects. (2) Consumption of alcoholic beverages impairs your ability to drive a car or operate machinery and may cause health problems."

3.8.2. This requirement also applies to foreign packaged beverages that Services activities serve or sell overseas.

3.8.3. The selling activity's manager must label all beverages that the producer doesn't label. Follow these labeling requirements:

3.8.3.1. PL 100-690 defines alcoholic beverages as any beverage in liquid form that contains not less than one-half of one percent (0.5 percent) of alcohol by volume for human consumption.

3.8.3.2. Design all labels to make the health warning statement readily legible under ordinary conditions. The statement must be on a contrasting background.

3.8.3.3. Label all containers of 237 milliliters (8 ounces) or less: 1 millimeter (0.04 inches) sized lettering.

3.8.3.4. Label all containers of more than 237 milliliters (8 ounces): 2 millimeters (0.08 inches) sized lettering.

3.8.3.5. Affix labels on the container so they can't be removed without thorough application of water or other solvents.

ROGER A. BRADY, Lt General, USAF
DCS, Manpower and Personnel

(JBCHARLESTON)

RICHARD D. MCCOMB, Colonel, USAF
Commander

ATTACHMENT 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

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Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

AFI—Air Force Instruction

ANG—Air National Guard

BATF—Bureau of Alcohol, Tobacco, and Firearms

DOD—Department of Defense

DODI—Department of Defense Instruction

FOA—Field Operating Agency

HQ AAFES/PL—Headquarters Army and Air Force Exchange Service, Strategic Planning and Communications Directorate

HQ AFSVA—Headquarters Air Force Services Agency

HQ AFSVA/SVP—Headquarters Air Force Services Agency, Directorate of Programs

HQ USAF/A1S—Headquarters United States Air Force, Director of Services

HQ USAF/SVPB—Headquarters United States Air Force, Club Division

MAJCOM—Major Air Command

MWRF—Morale, Welfare, and Recreation Fund

NAF—Nonappropriated fund

NAFI—Nonappropriated fund instrumentality

OI—Operating Instruction

OPR—Office of Primary Responsibility

TLF—Temporary Lodging Facility

USAF—United States Air Force

Terms

Adult.—A person 21 years old or over. Personnel 18 to 21 years old are adults if so defined by the law of the state, territory, possession, or foreign country where the installation is located. If a state, territory, possession, or foreign country prohibits alcoholic beverages or has no prescribed drinking age, an adult is a person 18 years old or older.

Alcoholic Beverages.—Potable beverages containing any amount of ethyl alcohol.

Bases in the United States.—Bases located in the 50 states and the District of Columbia.

Class Six Store or Annex.—The building or space within a building that serves as the main or supplementary point of sale for packaged (off -the-shelf) alcoholic beverages for off-premise consumption.

Container.—The innermost sealed container, regardless of the packaging material, in which the bottler places an alcoholic beverage for commercial sale.

Distilled spirits.—Alcoholic beverages produced by distilling.

Dram shop theory.—A theory of legal liability under which servers of alcoholic beverages (facility owner, operator, or employee) can be held liable for damages when they continue to serve alcoholic beverages to a customer who reaches or appears to be nearing the point of intoxication and the customer then brings harm to property, the customer, or others.

Low alcohol, nonmalt beverage.—A premixed, commercially packaged alcoholic beverage with less than seven percent alcohol content by volume.

Malt beverage.—Beer, ale, and malt liquor derived from yeast -induced fermentation of malted cereal grain to which hops have been added.

Minor.—An individual who doesn't meet the minimum age requirements for lawfully consuming alcohol.

Services activity.—Any activity operated by the base Services Squadron or Division.

Name brand fast food outlet.—A fast food outlet easily identifiable as a part of an off -base fast-food chain.

Nonalcoholic beverage.—A beverage containing no alcohol.

Wine.—A beverage made from the fermented juice of grapes or from other agricultural products containing not less than seven percent, and not more than 24 percent, alcohol by volume.